

Court No. - 21

Case :- WRIT - C No. - 6272 of 2023

Petitioner :- Manmohan Singh Kushwaha

Respondent :- U.P. Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Anil Kumar Gupta, Pinky Singh

Counsel for Respondent :- C.S.C., Arti Raj

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

None is present to press the petition even in the revised call.

Adjourned to 3.03.2023 as a fresh case.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.2.2023

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Ms. Arti Raje, learned counsel for the respondent-Electricity Department seeks further time to ascertain whether the respondents are ready to withdraw the impugned recovery and initiate fresh proceedings for determining the amount payable, if any, by the petitioner.

Accordingly, the matter is adjourned.

List on 13th March, 2023 as fresh.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

Rama Kant

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery certificate dated 08.04.2021 issued by respondent no. 2 for recovery of electricity dues in a case of theft of electricity.

Learned counsel for the respondent-Electricity Department, Ms. Arti Raje on instructions states that the impugned recovery has been withdrawn that the respondents will pass fresh order after providing opportunity of hearing to the petitioner.

Accordingly, the petition is **disposed of** with liberty to the respondent to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.3.2023

Rama Kant